

yet judgment ought to be, *quod recuperet visum per recognitores*; for otherwise, if he should be re-disseised, he could not have a writ of redisseisin; for that ought always to be by the jurors of the first assise, by whom the view of the seisin was given: and if all the recognitors of the assise be dead, so as there be not two of them alive, who with others may enquire of the re-disseisin, the writ of redisseisin fails; as Nat. Bre. 189. h. 8 Hen. 8. pl. . 23 Ass. pl. 7. 33 Edw. 3. "Redisseisin," 7. 40 Ass. 13. —Wherefore, upon these reasons, and upon view of a precedent 4 Jac. of such a judgment given before Popham in an assise, where the disseisin was confessed, and search made, and the precedent found accordingly, it was held by them all that the judgment was good: and if no precedent had been shewn, yet it stands with reason that such a judgment should be good; for otherwise, by the tenant's act, there never could be a re-disseisin. Wherefore the judgment was affirmed.

CASE 3. WATTS'S CASE.

Pardon of incontinency before sentence of deprivation will discharge costs.

Moor, 916. Cro. Car. 47. 68. 2 Bulst. 182. Cro. Eliz. 684. 3 Bac. Ab. 803.
2 Hawk. P. C. 556. 3 Ter. Rep. 3.

Prohibition was prayed to the High-Commission Court (a) for one Watts, Parson of S. (who was there deprived for incontinency, and another presented to his living, and he thereupon procuring a pardon to be restored to his benefice, was afterwards sued and proceeded against for costs of suit), to stop their proceedings (he having obtained the pardon before the sentence was given).—And it was allowed *per Curiam*: for though another be plaintiff in suits in the Courts of the Star-Chamber or High Commission, yet they be the King's suits, and he may pardon them; and if the pardon come before any sentence given, they shall not afterwards give any costs, as 5 Co. 51. *Hall's case*.

CASE 4. HEATH *against* RYDLEY.

A Court of Equity cannot intermeddle with matters of law; for neither attainr nor writ of error lies upon its decrees. *Post*. 344.

3 Inst. 123. 4 Inst. 97. Cro. Eliz. 646. Cro. Car. 596. Hob. 15. 1 Sid. 463.
1 Lev. 241. Hard. 120. Ray. 227. 1 Mod. 59. 3 Term Rep. 315.

In an action of debt at the common law, judgment being against the defendant, and day given to move in arrest thereof, he in the *interim* preferred his bill in Chancery, and obtained an injunction to stay judgment and execution: but, notwithstanding, the Court granted both; for by the statutes of 27 Edw. 3. c. 1. and 4 Hen. 4. c. 23. after judgment given (be it in plea real or personal), the party ought to be quiet, and to submit thereto; for a judgment being once given *in curia domini regis*, ought not to be reversed nor avoided but by error or attainr. And in the same term, upon a prohibition to stay proceedings in the Court of Requests (a), it was delivered for a general maxim in law, that if any Court of Equity doth intermeddle with any matters properly triable [336] at the common law, or which concern freehold, they are to be prohibited; for neither writ of error nor attainr can be brought to reverse the decrees made in those Courts: otherwise it is upon trials at the common law; for all matters are there decided either by a jury of twelve men, against whom (if they err in their verdict) an attainr lieth; or by the Judges, where if they err in their judgment, the party grieved may bring his writ of error.

(a) Abolished by 16 Car. 1. c. 10.

(a) This Court was virtually abolished by 16 Car. 1. c. 10.